

SERVICE AGREEMENT

Illustrative Draft for Legal Portfolio Purposes

Effective Date: 24 September 2026

This Service Agreement ("**Agreement**") is entered into on **24 September 2026** ("**Effective Date**").

BETWEEN

MEDINOVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka, India, hereinafter referred to as the "**Client**";

AND

SECUREBRIDGE ANALYTICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Hyderabad, Telangana, India, hereinafter referred to as the "**Service Provider**".

The Client and Service Provider are individually referred to as a "**Party**" and collectively as the "**Parties**".

1. PURPOSE

The Client wishes to engage the Service Provider to provide technology implementation, software support, maintenance, analytics and related professional services.

The Service Provider represents that it possesses the experience, technical capability, personnel and resources necessary to provide the Services.

The Parties therefore agree to the following terms.

2. DEFINITIONS

2.1 "Services"

Means the technology, implementation, maintenance, support, consulting and related services described in this Agreement and **Schedule 1**.

2.2 "Deliverables"

Means reports, documentation, configurations, software, dashboards, technical materials or other work product expressly identified as deliverables.

2.3 "Client Data"

Means information, records, files, datasets and other data supplied by or on behalf of the Client or generated from the Client's systems in connection with the Services.

2.4 "Service Levels"

Means the performance and response standards specified in **Schedule 2**.

2.5 "Confidential Information"

Means non-public information disclosed by either Party that is confidential by nature or identified as confidential.

3. SCOPE OF SERVICES

The Service Provider shall provide the Services described in **Schedule 1**.

The Services shall include, where applicable:

- software implementation;
- system configuration;
- API integration;
- technical support;
- maintenance;
- troubleshooting;
- analytics support;
- system monitoring;
- documentation; and
- user assistance.

The Service Provider shall perform the Services in accordance with the agreed specifications and Service Levels.

4. SERVICE PROVIDER OBLIGATIONS

The Service Provider shall:

- a. perform the Services with reasonable skill, care and diligence;
 - b. provide appropriately qualified and trained personnel;
 - c. comply with applicable laws and regulations;
 - d. maintain adequate resources to perform the Services;
 - e. maintain appropriate security controls;
 - f. promptly notify the Client of material service disruptions;
 - g. maintain appropriate records relating to the Services;
 - h. provide periodic service reports where reasonably required; and
 - i. cooperate reasonably with the Client regarding service-related issues.
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5. CLIENT OBLIGATIONS

The Client shall:

- a. provide information and access reasonably required for performance of the Services;
- b. provide authorised system credentials where necessary;
- c. nominate appropriate personnel for communication and approvals;
- d. provide timely feedback and decisions;
- e. maintain its own systems and infrastructure to the extent identified as a Client responsibility; and
- f. comply with the Client responsibilities specified in Schedule 1.

The Service Provider shall not be responsible for delays caused directly by the Client's failure to fulfil a material dependency.

6. SERVICE DELIVERY

The Service Provider shall maintain appropriate operational processes for delivering the Services.

Where a service interruption occurs, the Service Provider shall:

- 1. identify the cause;
- 2. assess the impact;
- 3. take reasonable corrective action;
- 4. communicate material developments to the Client; and
- 5. implement appropriate preventive measures where reasonably necessary.

Material incidents shall be documented and reviewed where appropriate.

7. SERVICE LEVELS

The Service Provider shall meet the Service Levels specified in **Schedule 2**.

Unless otherwise agreed:

Severity	Initial Response	Target Resolution / Workaround
Critical	2 hours	8 hours
High	4 hours	1 business day

Medium	1 business day	3 business days
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Low	2 business days	5 business days
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Resolution times may depend on the nature of the issue, third-party dependencies and Client cooperation.

Repeated material failure to meet Service Levels may constitute a material breach where the Service Provider fails to implement an agreed corrective-action plan.

8. SERVICE REPORTING

The Service Provider shall provide periodic reports containing, where applicable:

- service availability;
- incidents;
- response times;
- unresolved issues;
- service-level performance;
- maintenance activities;
- security incidents; and
- corrective actions.

The Parties may review service performance during periodic governance meetings.

9. FEES

The Client shall pay the Service Provider the fees specified in **Schedule 3**.

Unless otherwise specified:

- fees are exclusive of applicable taxes;
- invoices shall be issued monthly;
- undisputed invoices shall be payable within **30 days** of receipt; and
- the Client shall notify the Service Provider of disputed amounts within a reasonable period.

The Service Provider shall not increase agreed fees during the initial term except where expressly permitted under this Agreement.

10. EXPENSES

Reasonable and necessary expenses shall be reimbursable only where:

- a. expressly permitted under Schedule 3; or

b. approved by the Client in writing before being incurred.

The Service Provider shall provide reasonable supporting documentation for reimbursable expenses.

11. CHANGE REQUESTS

The Client may request changes to the Services.

A material change shall be documented through a written Change Request identifying:

- proposed change;
- impact on scope;
- impact on fees;
- impact on timeline;
- resource requirements; and
- technical implications.

The Service Provider shall not charge additional fees for a material change unless such charges have been approved by the Client in writing.

12. ACCEPTANCE OF DELIVERABLES

Where the Services include Deliverables, the Client shall review them within **10 business days** following delivery.

The Client may reject a Deliverable where it materially fails to comply with agreed specifications.

The Service Provider shall correct valid deficiencies and resubmit the Deliverable within a reasonable period.

Minor defects that do not materially affect the intended use shall not constitute grounds for rejection.

13. WARRANTIES

The Service Provider warrants that:

- a. it has full authority to enter into this Agreement;
- b. the Services shall be performed with reasonable skill and care;
- c. its personnel assigned to the Services shall possess appropriate qualifications;
- d. Deliverables shall materially conform to agreed specifications;
- e. it shall comply with applicable laws in performing the Services; and
- f. to its knowledge, the Services and Deliverables shall not knowingly infringe third-party intellectual property rights.

The Client shall promptly notify the Service Provider of any material warranty claim.

14. REMEDIES FOR SERVICE FAILURE

Where the Service Provider materially fails to perform the Services in accordance with this Agreement, the Service Provider shall use reasonable efforts to:

- correct the failure;
- re-perform the affected Services; or
- provide another commercially reasonable remedy agreed by the Parties.

Repeated material service failures may result in termination in accordance with Section 24.

15. INTELLECTUAL PROPERTY

15.1 Client Intellectual Property

The Client retains ownership of:

- Client Data;
- Client trademarks;
- Client documentation;
- Client software; and
- other intellectual property owned by the Client before the Effective Date.

15.2 Service Provider Intellectual Property

The Service Provider retains ownership of its pre-existing:

- software;
- tools;
- frameworks;
- methodologies;
- templates;
- know-how; and
- reusable technology.

15.3 Deliverables

Unless otherwise agreed in writing, intellectual property specifically created for the Client and expressly identified as Client-owned Deliverables shall be owned by the Client upon full payment of applicable fees.

To the extent Service Provider Materials are incorporated into such Deliverables, the Service Provider grants the Client a non-exclusive, perpetual, worldwide licence to use those materials as reasonably necessary to use the Deliverables.

16. CONFIDENTIALITY

Each Party shall maintain the confidentiality of the other Party's Confidential Information.

The receiving Party shall:

- use Confidential Information only for purposes of this Agreement;
- restrict access to persons with a legitimate need to know;
- implement reasonable safeguards; and
- not disclose Confidential Information without authorisation except where legally required.

Confidentiality obligations shall survive termination for **three (3) years**.

Trade secrets shall remain protected for so long as they qualify as trade secrets under applicable law.

17. DATA PROTECTION

Where the Service Provider processes personal data or other protected information on behalf of the Client, it shall:

- a. process such information only for authorised purposes;
- b. comply with applicable data-protection laws;
- c. maintain reasonable technical and organisational security measures;
- d. restrict access to authorised personnel;
- e. not sell or commercially exploit Client Data;
- f. not use Client Data to train unrelated AI models without prior written authorisation; and
- g. notify the Client without undue delay of a material security incident affecting Client Data.

Where required, the Parties shall execute a separate data-processing agreement.

18. INFORMATION SECURITY

The Service Provider shall maintain reasonable information-security controls appropriate to the nature of the Services.

Such controls may include:

- access management;
- authentication controls;
- encryption;
- vulnerability management;
- secure development practices;
- logging and monitoring;
- backup procedures; and
- incident-response procedures.

The Service Provider shall provide reasonable information concerning its security controls where required for the Client's compliance assessment, subject to confidentiality and security limitations.

19. PERSONNEL AND SUBCONTRACTING

The Service Provider shall assign appropriately qualified personnel.

The Service Provider shall remain responsible for its personnel's performance.

The Service Provider shall not subcontract a material portion of the Services without notifying the Client.

Any approved subcontractor shall be subject to obligations appropriate to the Services, including confidentiality and information-security requirements.

20. INDEMNIFICATION

Subject to the limitations of this Agreement, the Service Provider shall indemnify the Client against third-party claims arising from:

- a. infringement or alleged infringement of third-party intellectual property rights by the Deliverables;
- b. bodily injury or property damage caused by the Service Provider's negligence or wilful misconduct;
- c. fraud or wilful misconduct by the Service Provider; or
- d. material violation of applicable law by the Service Provider in connection with the Services.

The Client shall indemnify the Service Provider against third-party claims arising from the Client's unlawful use of Client Data or materials supplied by the Client.

The indemnified Party shall promptly notify the indemnifying Party of a claim and provide reasonable cooperation.

21. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, neither Party shall be liable for indirect, incidental, special or consequential damages arising from this Agreement.

Subject to the exclusions below, the aggregate liability of either Party shall not exceed the total fees paid or payable under this Agreement during the **12 months preceding the event giving rise to the claim**.

The limitation shall not apply to liabilities arising from:

- fraud;
 - wilful misconduct;
 - unauthorised disclosure or misuse of Confidential Information;
 - infringement or misappropriation of intellectual property rights; or
 - liabilities that cannot legally be limited.
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22. INSURANCE

The Service Provider shall maintain insurance appropriate to the nature and scale of the Services, including, where commercially appropriate:

- professional liability/errors and omissions insurance;

- commercial general liability insurance; and
- cyber or technology liability insurance.

Evidence of applicable coverage shall be provided upon reasonable request.

23. AUDIT AND COMPLIANCE

The Client may, upon reasonable notice, request information reasonably necessary to verify the Service Provider's compliance with material contractual, security and regulatory obligations.

Any audit shall:

- be conducted during reasonable business hours;
 - minimise disruption;
 - protect confidential information; and
 - avoid unnecessary access to systems unrelated to the Services.
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24. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and remain effective for **two (2) years**.

Either Party may terminate this Agreement for convenience by providing **30 days' written notice**.

Either Party may terminate for material breach if the breaching Party fails to cure the breach within **30 days** after receiving written notice.

The Client may terminate immediately where the Service Provider:

- commits fraud or wilful misconduct;
 - suffers an insolvency event;
 - materially compromises Client Data through negligent or unauthorised conduct; or
 - repeatedly fails to meet material Service Levels after receiving a reasonable opportunity to cure.
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25. EFFECT OF TERMINATION

Upon termination:

- a. the Service Provider shall cease providing terminated Services;
- b. the Client shall pay undisputed fees properly due for Services performed before termination;
- c. the Service Provider shall return or delete Client Confidential Information as required;
- d. the Service Provider shall provide completed Deliverables for which the Client has paid; and
- e. the Parties shall reasonably cooperate to transition Services where required under an applicable transition plan.

Termination shall not affect accrued rights or obligations.

26. TRANSITION ASSISTANCE

Where reasonably required following termination, the Service Provider shall provide transition assistance for up to **30 days** to facilitate transfer of the Services to the Client or another service provider.

Transition assistance may include:

- transfer of relevant documentation;
- knowledge-transfer sessions;
- handover of configuration information;
- transfer of Client-owned Deliverables; and
- reasonable cooperation concerning service migration.

Additional transition services may be charged at mutually agreed rates unless termination resulted from the Service Provider's uncured material breach.

27. FORCE MAJEURE

Neither Party shall be liable for failure or delay caused by circumstances beyond its reasonable control, including natural disasters, widespread telecommunications failures, war, governmental restrictions or comparable events.

The affected Party shall promptly notify the other Party and take reasonable steps to mitigate the impact.

Payment obligations for Services already performed shall not be excused by force majeure.

28. NON-SOLICITATION

During the term and for **12 months thereafter**, neither Party shall knowingly solicit for employment personnel of the other Party who were materially involved in providing or receiving the Services.

This restriction shall not apply to general recruitment campaigns or unsolicited applications.

29. PUBLICITY

Neither Party shall use the other Party's name, trademarks or logos in promotional material, press releases or public announcements without prior written approval.

The Service Provider shall not identify the Client as a customer without the Client's prior written consent.

30. INDEPENDENT CONTRACTOR

The Service Provider is an independent contractor.

Nothing in this Agreement creates a partnership, agency, joint venture, employment relationship or fiduciary relationship between the Parties.

31. ASSIGNMENT

Neither Party shall assign this Agreement without prior written consent of the other Party, except to a successor entity in connection with a merger, restructuring or transfer of substantially all relevant assets.

32. GOVERNING LAW

This Agreement shall be governed by the laws of **India**.

Subject to Section 33, courts having competent jurisdiction at **Bengaluru, Karnataka** shall have jurisdiction.

33. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith negotiations between authorised senior representatives.

If the dispute remains unresolved for **30 days**, either Party may refer the dispute to arbitration under the **Arbitration and Conciliation Act, 1996**.

Unless otherwise agreed:

- the seat shall be Bengaluru, India;
- the language shall be English; and
- the tribunal shall consist of one mutually appointed arbitrator.

Either Party may seek urgent interim relief from a competent court.

34. NOTICES

Formal notices shall be made in writing and delivered by recognised courier, registered post or email to the authorised contact details specified by the Parties.

35. ENTIRE AGREEMENT

This Agreement and its Schedules constitute the entire agreement between the Parties concerning the Services and supersede prior discussions relating to the same subject matter.

36. AMENDMENTS

Any amendment shall be valid only if made in writing and signed by authorised representatives of both Parties.

37. SEVERABILITY

If any provision is held invalid or unenforceable, the remaining provisions shall remain effective.

The Parties shall endeavour to replace the affected provision with a valid provision that most closely reflects the original commercial intent.

38. WAIVER

Failure or delay to exercise any right shall not constitute a waiver.

Any waiver must be expressly provided in writing.

39. ELECTRONIC EXECUTION

This Agreement may be executed electronically and in counterparts to the extent permitted by applicable law.

Each counterpart shall be considered an original and together shall constitute one agreement.

SIGNATURES

FOR MEDINOVA TECHNOLOGIES PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

FOR SECUREBRIDGE ANALYTICS PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

SCHEDULE 1 — DESCRIPTION OF SERVICES

The Service Provider shall provide the following Services:

A. Implementation

- software configuration;
- API integration;
- system setup;
- user configuration; and
- deployment assistance.

B. Technical Support

- incident management;
- troubleshooting;
- technical assistance;
- bug resolution; and
- system monitoring.

C. Maintenance

- corrective maintenance;
- security updates;
- configuration support; and
- agreed system optimisation.

D. Analytics Support

- dashboard maintenance;
 - reporting support;
 - data-quality review; and
 - agreed analytics configuration.
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SCHEDULE 2 — SERVICE LEVELS

Severity	Example	Response	Target Resolution
Critical	Complete service outage	2 hours	8 hours
High	Major functionality unavailable	4 hours	1 business day
Medium	Limited functionality affected	1 business day	3 business days
Low	Minor issue/request	2 business days	5 business days

Service Levels shall be measured from the time a valid support request is logged through the agreed support channel.

SCHEDULE 3 — COMMERCIAL TERMS

Monthly Service Fee

INR 1,50,000 + applicable taxes

Initial Term

24 months

Payment Terms

30 days from receipt of undisputed invoice

Additional Services

Services outside the agreed scope shall be charged at mutually agreed rates following written approval.

Travel

Pre-approved travel expenses shall be reimbursed at actual cost against appropriate supporting documentation.
